

IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.:
DIV.:

WILLIAM JASPER YOUNG,

Plaintiff,

vs.

BLUE OX ENTERPRISES, INC.,
a foreign for-profit corporation, and
PIERRE FORTIN, an individual.

Defendants.

COMPLAINT AND DEMAND FOR JURY TRIAL

COMES NOW Plaintiff, WILLIAM JASPER YOUNG, by and through the undersigned attorneys, files this Complaint and brings suit against Defendants, BLUE OX ENTERPRISES, INC. and PIERRE FORTIN. In support hereof, Plaintiff's states as follows:

JURISDICTIONAL AND GENERAL ALLEGATIONS

1. This is an action for damages in excess of \$30,000.00, exclusive of fees, cost and interest.
2. That at all times material hereto, Plaintiff, WILLIAM JASPER YOUNG, was and remains a resident of Duval County, Florida and is otherwise, sui juris.
3. At all times material hereto, Defendant, BLUE OX ENTERPRISES, INC., whose principal place of business address is 2085 New Boston Road, Saint Johnsbury, Vermont 05819 was and remains, a foreign profit corporation authorized to transact business with no resident agent or officer in the State of Florida pursuant to Section 48.181, Florida Statutes.
4. At all times material hereto, Defendant, PIERRE FORTIN, was a non-resident of Florida who operated, conducted, engaged in, or carried on a business or business venture in the state, pursuant to Section 48.181, Florida Statutes.

5. On or about December 17, 2018, Defendant, BLUE OX ENTERPRISES, INC., owned or leased a 1999 Kenworth Commercial Truck, Vermont Tag 60D23, VIN: 1XKWDB9X4XJ955587, with a 2005 FONA trailer in tow, Maine Tag 2076128, VIN: 4LF34820453527029.

6. On or about December 17, 2018, Defendant, PIERRE FORTIN, was an owner, employee or agent of Defendant, BLUE OX ENTERPRISES, INC.

7. On or about December 17, 2018, Defendant, PIERRE FORTIN, operated the tractor along with an attached trailer within the course and scope of his employment or agency with Defendant, BLUE OX ENTERPRISES, INC., and with Defendant, BLUE OX ENTERPRISES, INC.'s consent.

8. On or about December 17, 2018, Plaintiff was the properly restrained driver of his 2011 Lincoln Town Car using due care and caution and abided by Florida's traffic and motor vehicle statutes while Plaintiff travelled northbound on Interstate 295 near J.T. Butler Boulevard in Jacksonville, Duval County, Florida.

9. At that time and place, Defendant, PIERRE FORTIN, travelled northbound on Interstate 295 near J.T. Butler Boulevard posterior to the Lincoln.

10. At that time and place, Defendant, PIERRE FORTIN, negligently operated the tractor-trailer, so that the vehicle rear-ended Plaintiff's vehicle and, thereby, caused the Plaintiff to suffer serious permanent injuries.

11. There were no external visual obstructions, distractions or actions by any third party which in any way contributed to Defendant, PIERRE FORTIN's, failure to obey the traffic laws, or failure to watch where he operated the commercial truck.

12. Plaintiff was unable to avoid the imminent collision with Defendant, PIERRE FORTIN.

13. The collision caused significant damage to Plaintiff's vehicle.

COUNT I - NEGLIGENCE OF DEFENDANT, PIERRE FORTIN

14. Plaintiff re-alleges, and incorporates by reference, the allegations in paragraphs one (1) through thirteen (13) above.

15. As the driver of an automobile in the State of Florida, Defendant, PIERRE FORTIN, owed other drivers, including Plaintiff, a duty to use reasonable care and caution in the operation of his vehicle and to: (a) comply with all Florida Traffic Statutes; (b) refrain from violating other drivers', including Plaintiff's, lawful rights-of-way; (c) remain aware of his surroundings and other traffic; and (d) operate the Commercial truck so as not to collide with another vehicle, including Plaintiff's vehicle.

16. At the aforementioned time and place, Defendant, PIERRE FORTIN, breached the aforementioned duties of care when Defendant, PIERRE FORTIN, negligently operated the Commercial truck and crashed it in Plaintiff's vehicle.

17. As a direct and proximate result of one or more of the foregoing acts or omissions of Defendant, PIERRE FORTIN, Plaintiff suffered serious and disabling injuries.

18. As a direct and proximate result of the negligence of Defendant, PIERRE FORTIN, the Plaintiff suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical care and treatment, and loss of earning capacity. The losses are either permanent or continuing and plaintiff will suffer the losses in the future.

WHEREFORE, Plaintiff demands judgment against Defendant, PIERRE FORTIN, for damages, as well as costs, and further **demands a trial by jury.**

COUNT II- VICARIOUS LIABILITY OF DEFENDANT, BLUE OX ENTERPRISES, INC.

19. Plaintiff re-alleges, and incorporates by reference, the allegations contained in paragraphs one (1) through eighteen (18) above.

20. At all times material, Defendant, PIERRE FORTIN, was an owner, employee and/or agent of Defendant, BLUE OX ENTERPRISES, INC.

21. At all times material, Defendant, PIERRE FORTIN, was acting in the course and scope of his employment or agency.

22. Defendant, PIERRE FORTIN, was engaged in a mission for Defendant, BLUE OX ENTERPRISES, INC.

23. Defendant, BLUE OX ENTERPRISES, INC., is vicariously liable for the negligent acts or omissions committed by Defendant, PIERRE FORTIN, while acting in the course and scope of his employment and/or agency under a theory of respondent superior.

WHEREFORE Plaintiff, WILLIAM JASPER YOUNG, demands judgment against Defendants for compensatory damages, all available costs and interest and further relief that the Court may deem proper, and respectfully demands trial by jury of all issues triable as of right by a jury.

FARAH & FARAH, P.A.

By: /s/ **Xavier T. Saunders**

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